

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #03	CCRB Case #: 201501642	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/26/2015 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/26/2016	Precinct: 07		
Date/Time CV Reported Mon, 03/09/2015 1:27 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/09/2015 1:27 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM James Romano	01748	947429	NARCBMS
2. POM Thomas Lee	09089	948069	NARCBMS
3. SGT Brian Byrnes	00969	917357	NARCBMS
4. Officers			NARCBMS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Steven Jilling	03613	941961	NARCBMS
2. DT3 Dia Allen	107	937966	NARCBMS
3. DT2 David Guevara	07165	887173	NARCBMS
4. POM Johnpaul Vinculado	26234	946376	NARCBMS
5. LT Charles Hyland	00000	915928	NARCBMS
6. DT3 Ian Scheinblum	07550	941140	NARCBMS
7. DT3 Michael Franco	07551	940158	NARCBMS
8. DT3 Edwin Feliciano	02247	940133	NARCBMS

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Manhattan.	A . Exonerated
B . Officers	Discourtesy: Officers spoke rudely to § 87(2)(b) and § 87(2)(b)	B . Officer(s) Unidentified
C . POM James Romano	Discourtesy: PO James Romano spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . POM Thomas Lee	Discourtesy: PO Thomas Lee spoke rudely to § 87(2)(b)	D . Unsubstantiated
E . SGT Brian Byrnes	Discourtesy: Sgt Brian Byrnes spoke rudely to § 87(2)(b)	E . Unsubstantiated
F . POM James Romano	Abuse: PO James Romano refused to show a search warrant to § 87(2)(b) and § 87(2)(b)	F . Substantiated
G . SGT Brian Byrnes	Abuse: Sgt Brian Byrnes refused to show a search warrant to § 87(2)(b) and § 87(2)(b)	G . Substantiated

Officer(s)	Allegation	Investigator Recommendation
H . POM James Romano	Abuse: PO James Romano threatened to notify Administration for Children's Services.	H . Exonerated
I . POM James Romano	Abuse: PO James Romano damaged § 87(2)(b)s property.	I . Unfounded

Case Summary

On February 26, 2015, at approximately 6:00 a.m., officers of Narcotics Manhattan South executed a valid search warrant in which they entered and searched Apartment § 87(2)(b), where § 87(2)(b) and § 87(2)(b) resided with § 87(2)(b) s three children, ages § 87(2)(b) (Allegation A). Upon entering, an officer told § 87(2)(b) “Get the fuck down before we blow your motherfucking head off!” and officers asked § 87(2)(b) “Where the fuck are the guns?” (Allegation B). PO James Romano, Sgt Brian Byrnes, and PO Thomas Lee also asked § 87(2)(b) “Where the fuck are the guns?” (Allegations C, D, and E). § 87(2)(b) asked PO James Romano, Sgt Brian Byrnes, and PO Thomas Lee to show him the warrant multiple times, but he was never shown the warrant. § 87(2)(b) asked PO Lee to see the warrant as well, and also was not shown the warrant (Allegations F and G). PO Romano told § 87(2)(b) that if contraband was recovered from the apartment she would be arrested and the Administration of Child Services would be notified (Allegation H). § 87(2)(b) found that in addition to her door, her ottoman, chair, glass, and sofa were damaged as a result of the officers’ actions (Allegation I). § 87(2)(b) was arrested for § 87(2)(b).

Mediation, Civil and Criminal Histories (Board review 1; 2; 3)

- Mediation was presented to § 87(2)(b) over the phone on March 11, 2015, and during her interview. She rejected mediation § 87(2)(b).

- As of April 3, 2015, neither § 87(2)(b) nor § 87(2)(b) had filed a Notice of Claim with the City of New York with regard to this incident.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories (Board review 4; 5; 6; 7)

- This is the fourth CCRB complaint filed by § 87(2)(b) § 87(2)(b).
- PO Romano has been a member of the NYPD for seven years, has had three previous CCRB allegations involving two cases with two substantiated allegations for discourtesy.
- PO Lee has been a member of the NYPD for six years, has had two previous CCRB allegations involving one case with no substantiated allegations. One of the past allegations is for an entry and search and was exonerated.
- Sgt Byrnes has been a member of the NYPD for 18 years, has had six previous CCRB allegations involving three cases with no substantiated allegations. Two of these past allegations were for discourtesy.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that he asked PO Romano, Sgt Byrnes, and PO Lee to see the warrant numerous times, and § 87(2)(b) alleged that she asked PO Lee to see the warrant as well. Det Guevara, Sgt Byrnes, and PO Lee denied carrying a copy of the warrant. Det Guevara and PO Lee stated that the supervisor, arresting officer, or officer who requested the warrant would generally have a copy of the warrant. Sgt Byrnes claimed that the arresting officer would generally have a copy of the warrant. Sgt Byrnes and PO Lee both asserted that if asked to

present the warrant, they would probably relay the request to the arresting officer or officer who had a copy.

§ 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A – Officers entered and searched

It is undisputed that officers assigned to Narcotics Manhattan South entered and searched § 87(2)(b) based upon a valid search warrant issued by the Honorable § 87(2)(b) of the Criminal Court of the City of New York on § 87(2)(b) (Board review 8).

Article 690.05 of the New York State Criminal Procedure Law states that a search warrant is a court order and process directing the police to conduct a search of the designated premises for the purpose of seizing property or kinds or property, and to deliver any property so obtained to the court which issued the warrant (Board review 9).

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B – Officers spoke rudely to § 87(2)(b) **and** § 87(2)(b)

Allegation C – PO James Romano spoke rudely to § 87(2)(b)

Allegation D – Sgt Brian Byrnes spoke rudely to § 87(2)(b)

Allegation E – PO Thomas Lee spoke rudely to § 87(2)(b)

§ 87(2)(b) was interviewed on Riker’s Island on April 17, 2015, and stated that on February 26, 2015, at approximately 5:45 a.m., he was sleeping on the couch, which was approximately ten feet from the front door of the apartment. Upon breaching the door, approximately three to six officers ran into the apartment, and an officer stated, “Get the fuck down before we blow your motherfucking head off!” § 87(2)(b) immediately lay face down on the floor. He could not see the officers clearly, as the apartment was dark and the officers’ flashlights

shined in his eyes. He was therefore unable to determine which officer made this statement. Other officers ran to the bedroom where § 87(2)(b) and her children were sleeping, at which point an officer stated, “Oh shit, there’s kids in here.” While the lights were still off, four or five officers advanced toward § 87(2)(b) to apprehend him, and instructed him to “stay the fuck down.” He did not know which of the officers said this to him. Once § 87(2)(b) was handcuffed and seated on the couch, and the lights were turned on, he saw three officers, identified via the investigation as PO James Romano, PO Thomas Lee, and Sgt Brian Byrnes standing around him. There may have been a few other officers present, but they quickly left while he was on the couch. PO James Romano, PO Thomas Lee, and Sgt Brian Byrnes repeatedly asked § 87(2)(b) “Where the fuck are the guns?” § 87(2)(b) later heard officers ask § 87(2)(b) this as well. He was unable to see which officers were speaking with § 87(2)(b). § 87(2)(b) was only able to provide descriptions of PO Romano, PO Lee, Sgt Byrnes, and Det Dia Allen, who he saw go into the bedroom.

§ 87(2)(b) was interviewed on April 1, 2015. She provided a statement to IAB on February 27, 2015, a phone statement to the undersigned investigator on March 11, 2015, and a letter to the Mayor’s office on June 12, 2015 (Board review 10; 29). Her statements were generally consistent. § 87(2)(b) confirmed that she was asleep in her bedroom with her three children when the officers first entered, and that § 87(2)(b) was in the living room on the couch. She did not hear the officers enter and did not hear them issue any commands to § 87(2)(b). § 87(2)(b) later informed her that upon entering, an officer had stated, “If you move we’ll/I’ll blow your fucking head off.” § 87(2)(b) awoke to officers’ flashlights shining in her eyes, and heard an officer state either, “Oh, there’s babies in here?” or, “There are kids in there.” (During her phone statement she believed PO Romano stated this.) § 87(2)(b) did not allege that officers used any profanity toward her, but stated that while two officers escorted § 87(2)(b) to the bathroom, one officer told him, “Don’t fuck around with us because if you fuck around with us we can be real nasty.” She did not know which officer stated this, but believed that Sgt Byrnes and PO Romano (identified via the investigation) escorted § 87(2)(b) to the bathroom.

PO Romano was interviewed on May 28, 2015. Sgt Byrnes was interviewed on June 5, 2015, and PO Lee was interviewed on June 16, 2015. All three officers recounted that upon entering the apartment they advanced toward § 87(2)(b) and assisted in handcuffing him. Sgt Byrnes believed that another officer may have assisted as well, and PO Lee believed that other officers other than himself and PO Romano may have assisted as well. Neither Sgt Byrnes nor PO Lee could identify these other possible officers. They believed that other officers went to the bedroom, but could not affirmatively identify those officers. While PO Lee denied taking § 87(2)(b) to the bathroom, PO Romano and Sgt Byrnes confirmed that they had taken § 87(2)(b) to the bathroom, and Sgt Byrnes claimed that PO Lee did so as well. The officers confirmed that the warrant was for narcotics, and that they were not specifically looking for guns, as is confirmed by the pre-execution search warrant plan (Board review 11). All three officers denied stating or hearing other officers state the alleged discourtesies and threat of force.

Det Allen was interviewed on June 16, 2015. She was among the last officers to enter the apartment, and only saw § 87(2)(b) for a brief moment before being called into the bedroom to stay with § 87(2)(b) and her children. She could not recall who called her into the bedroom. She remained in the bedroom throughout the search, and could not hear the officers’ conversation with § 87(2)(b) from the bedroom. She denied using any profanity or threatening § 87(2)(b) with force, and did not hear any other officers do so.

According to the tactical plan, the search warrant team consisted of 16 officers (Board review 12). § 87(2)(b) was unable to see or provide any significant details of who stated, “Get the fuck down before we blow your motherfucking head off!”, “Stay the fuck down,” or, “Oh shit there’s kids in here,” or who asked § 87(2)(b) “Where the fuck are the guns?” Furthermore, § 87(2)(b) did not hear any of the aforementioned statements. Thus, the investigation was

unable to identify the subjects of these allegations. It is therefore recommended that **Allegation B** be closed as **Officer(s) unidentified**.

PO Romano, PO Lee, and Sgt Byrnes denied asking § 87(2)(b) “Where the fuck are the guns?” § 87(2)(g)

Therefore, it is recommended that **Allegations C, D and E**, be closed as **Unsubstantiated**.

Allegation F – PO James Romano refused to show a search warrant to § 87(2)(b) and § 87(2)(b)

Allegation G – Sgt Brian Byrnes refused to show a search warrant to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that once seated on the couch in handcuffs, he asked PO Romano, Sgt Byrnes, PO Lee, and any other officers present if they had a warrant and if he could see a copy of it. (As mentioned earlier, he could only provide descriptions of PO Romano, Sgt Byrnes, and PO Lee, as the majority of his interactions were with those officers). § 87(2)(b) repeatedly asked the officers to see the warrant throughout the incident, and estimated that he asked Sgt Byrnes and PO Lee at least ten to fifteen times. Sgt Byrnes repeatedly told § 87(2)(b) to be quiet, and the officers repeatedly responded to § 87(2)(b) “Do you really want to see one?” § 87(2)(b) affirmed that he did, but was never shown the warrant. At one point an officer did, however, confirm that a warrant existed. § 87(2)(b) heard § 87(2)(b) ask for the warrant as well, and heard officers respond, “Do you really want to see one?” § 87(2)(b) later told § 87(2)(b) that she was never shown the warrant. During his interview, § 87(2)(b) was still quite concerned that he had not yet been shown a copy of the warrant, and repeated the officers’ denial of his countless requests to see the warrant. He added that he has continued to request to see the warrant ever since the incident. § 87(2)(b) questioned the existence of the warrant, stating that had there been a warrant the officers would have known that there were children in the apartment prior to entering. This allegation seemed to be among § 87(2)(b)’s primary concerns, and he still did not know if a warrant even existed at the time of his interview.

§ 87(2)(b) stated that she was kept in her bedroom for approximately 15 to 30 minutes until § 87(2)(b) was removed from the apartment. Her bedroom door was kept closed for at least 15 minutes, and she was then told to sit in the living room. She alleged that while in the living room she asked PO Lee to see the warrant, and what was in the box he was carrying. PO Lee responded, “Are you sure you want to know?” or, “Are you sure you want to see it?” and disregarded her request to see the warrant. § 87(2)(b) was never shown a copy of the warrant. § 87(2)(b) later told her that the officers had not executed the warrant properly.

Det Guevara was interviewed on May 28, 2015, and claimed that neither § 87(2)(b) nor § 87(2)(b) requested for Det Guevara to show them the warrant, and Det Guevara did not recall hearing them request the warrant from other officers. He was only in the apartment for approximately one minute. Det Allen, PO Lee, and Sgt Byrnes denied having been asked to present the warrant, and denied hearing § 87(2)(b) or § 87(2)(b) ask any other officer to see the warrant. Sgt Byrnes added that generally the arresting officer leaves a copy of the warrant at the location. He did not know if a copy was left at the apartment.

PO Romano confirmed that he had a copy of the warrant, but did not know if any other officers had a copy. He stated that if someone asked to see the warrant he would usually show it to whoever requested it. He denied hearing § 87(2)(b) or § 87(2)(b) ask any officer to see the warrant, and claimed that neither § 87(2)(b) nor § 87(2)(b) asked him to see the warrant.

Patrol Guide procedure 212-105 states that the member of service executing the search warrant shall, when able to do so safely, show a copy of the search warrant to any of the occupants of the premises (Board review 28).

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as **Substantiated**.

Allegation H - PO James Romano threatened to notify Administration for Children's Services.

§ 87(2)(b) alleged that PO Romano told her that if he found firearms in the apartment she would be arrested and her children would be taken away from her. § 87(2)(b) heard an officer tell § 87(2)(b) that she would be arrested if any contraband was found in the apartment. § 87(2)(b) then told the officers that any contraband found in the house belonged to him.

Officers are required to notify the Administration for Children's Services to obtain care for a child under the age of 18 when their parent or guardian has been arrested, even if the child is left with a relative or friend, Patrol Guide Procedure 215-01. Furthermore, according to Patrol Guide Section 215-03, an officer may call the Administration for Children's Services if he believes that a child's safety may be compromised (Board review 13).

§ 87(2)(g)

It is therefore recommended that **Allegations H** be closed as **Exonerated**.

Allegation I – An officer damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that after waiting in her bedroom with her children and Det Allen for approximately 15 to 30 minutes, she was taken into the living room and told to sit on her ottoman. As she walked into the living room, § 87(2)(b) was being escorted out of the apartment. Upon entering the living room, § 87(2)(b) saw that the leather on her sofa cushions had been

torn open and that the cushions, which were not detachable, had been ripped from the frame of the sofa. § 87(2)(b) remained in the living room until the officers left. Once they left, she found that the ottoman she had been sitting on was torn, ash was on her carpet, and the left arm of her chair was broken off. § 87(2)(b) believed that all of the damage was caused by the officers. Photos of the damage were taken by § 87(2)(b) as well as the undersigned investigator (Board review 15-27).

§ 87(2)(b) was seated on the couch for the majority of the incident, with the exception of when he was taken to the bathroom. He heard officers looking through his kitchen, which is located behind the couch, but did not see them search other parts of the apartment. He did not see § 87(2)(b) until he was being escorted out of the apartment. § 87(2)(b) did not make any allegations of property damage.

Det Allen confirmed that § 87(2)(b) was brought into the living room as § 87(2)(b) was being taken out of the apartment, and PO Romano stated that he began to search the apartment once § 87(2)(b) was brought into the living room. All interviewed officers denied causing the alleged damage and denied having witnessed another officer do so.

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **Unfounded**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date